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Commonwealth v. Exxon Mobil Corp.

Superior Court of Massachusetts, At Suffolk, Business Litigation Session

June 22, 2021, Decided

Opinion No.: 146626, Docket Number: 1984CV03333-BLS1

Reporter
2021 Mass. Super. LEXIS 377 *

Commonwealth of Massachusetts v. Exxon Mobil Corporation

Subsequent History: Affirmed by *Commonwealth v. Exxon Mobil Corporation, 2022 Mass. LEXIS 248 (Mass., May 24, 2022)*

Prior History: *Commonwealth v. Exxon Mobil Corp., 2021 Mass. Super. LEXIS 371, 2021 WL 3488414 (Mass. Super. Ct., June 22, 2021)*

Core Terms

petitioning activity, ***climate***, products, petitioning, consumers, alleges, fuel, right of petition, special motion, anti-SLAPP, investors, risks, judicial body

Case Summary

Overview

HOLDINGS: [1]-A major oil company was not entitled to dismissal of the Commonwealth's suit against it under *Mass. Gen. Laws Ann. ch. 231, § 59H*, the anti-slapp statute, because it failed to meet its threshold burden of showing, by a preponderance of the evidence, that the Commonwealth's claims were based solely on the company's petitioning activities, and failed to show how any of the omissions alleged by the Commonwealth as violating *Mass. Gen. Laws Ann. ch. 93A* qualified as protected petitioning, and had not shown that it made any of the alleged statements solely, or even primarily, to influence, inform, or reach any governmental body, directly or indirectly, as the statements appeared to be directed at influencing investors to retain or purchase the company's securities or to induce consumers to purchase its products, thereby increasing its profits.

Outcome
Special motion to dismiss denied.

LexisNexis® Headnotes

Constitutional Law > Bill of Rights > Fundamental Freedoms > Freedom to Petition

Constitutional Law > ... > Fundamental Freedoms > Freedom of Speech > Strategic Lawsuits Against Public Participation

HN1 **Fundamental Freedoms, Freedom to Petition**

The Massachusetts Legislature enacted the anti-SLAPP statute, Mass. Gen. Laws Ann. ch. 231, § 59H, to counteract SLAPP suits, defined broadly as lawsuits brought primarily to chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances. The objective of a SLAPP suit is not to win, but to use litigation to intimidate opponents' exercise of rights of petitioning and speech. Generally, a SLAPP suit has no merit.

Constitutional Law > Bill of Rights > Fundamental Freedoms > Freedom to Petition

Constitutional Law > ... > Fundamental Freedoms > Freedom of Speech > Strategic Lawsuits Against Public Participation

HN2 **Fundamental Freedoms, Freedom to Petition**

The anti-SLAPP statute, Mass. Gen. Laws Ann. ch. 231, § 59H, protects a party's exercise of its right of petition. § 59H.

Constitutional Law > Bill of Rights > Fundamental Freedoms > Freedom to Petition

Constitutional Law > ... > Fundamental Freedoms > Freedom of Speech > Strategic Lawsuits Against Public Participation

HN3 **Fundamental Freedoms, Freedom to Petition**

The anti-SLAPP statute, Mass. Gen. Laws Ann. ch. 231, § 59H, defines "a party's exercise of its right to petition" as [1] any written or oral statement made before or submitted to a legislative, executive, or judicial body, or any other governmental proceeding; [2] any written or oral statement made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other governmental proceeding; [3] any statement reasonably likely to encourage consideration or review of an issue by a legislative executive, or judicial body or any other governmental proceeding; [4] any statement reasonably likely to enlist public participation in an effort to effect such consideration; or [5] any other statement falling within constitutional protection of the right to petition government. § 59H.

Constitutional Law > Bill of Rights > Fundamental Freedoms > Freedom to Petition

Constitutional Law > ... > Fundamental Freedoms > Freedom of Speech > Strategic Lawsuits Against Public Participation

HN4 **Fundamental Freedoms, Freedom to Petition**

For the purposes of the anti-SLAPP statute, Mass. Gen. Laws Ann. ch. 231, § 59H, "petitioning" includes all statements made to influence, inform, or at the very least, reach governmental bodies—either directly or indirectly.

Civil Procedure > ... > Responses > Defenses, Demurrers & Objections > Motions to Dismiss

Evidence > Burdens of Proof > Preponderance of Evidence

Constitutional Law > ... > Fundamental Freedoms > Freedom of Speech > Strategic Lawsuits Against Public Participation

HN5 **Defenses, Demurrers & Objections, Motions to Dismiss**

The moving party alleging it has been the target of a SLAPP suit, first must show, by a preponderance of the evidence, that each claim it challenges is solely based on its own petitioning activities. The moving party must show that claims against it are based on its petitioning activities alone and have no substantial basis other than or in addition to petitioning activities. As part of the threshold burden, the moving party must show that conduct complained of constitutes an exercise of its right to petition. If the movant fails to show that the only conduct about which the plaintiff complains is petitioning activity, the court must deny the special motion to dismiss.

Civil Procedure > ... > Responses > Defenses, Demurrers & Objections > Motions to Dismiss

Constitutional Law > ... > Fundamental Freedoms > Freedom of Speech > Strategic Lawsuits Against Public Participation

HN6 **Defenses, Demurrers & Objections, Motions to Dismiss**

For the purposes of a motion to dismiss under the anti-SLAPP statute, a court should apply the augmented Duracraft framework sequentially.

Civil Procedure > ... > Responses > Defenses, Demurrers & Objections > Motions to Dismiss

Constitutional Law > Bill of Rights > Fundamental Freedoms > Freedom to Petition

Evidence > Burdens of Proof > Burden Shifting

Constitutional Law > ... > Fundamental Freedoms > Freedom of Speech > Strategic Lawsuits Against Public Participation

Evidence > Burdens of Proof > Preponderance of Evidence

HN7 **Defenses, Demurrers & Objections, Motions to Dismiss**

If the party moving to dismiss under the anti-SLAPP

statute, Mass. Gen. Laws Ann. ch. 231, § 59H, satisfies its threshold burden, then the burden shifts to the plaintiff to demonstrate that § 59H does not require dismissal of its claims. The plaintiff can do so in one of two ways. First, it can establish, by a preponderance of the evidence, that the movant's exercise of its right to petition was devoid of any reasonable factual support or any arguable basis in law and its acts caused actual injury to the plaintiff. §59H. Alternatively, it can establish, such that the motion judge can conclude with fair assurance, that each of the p;laintiff's claims is not a meritless SLAPP suit, i.e., that it is both colorable and non-retaliatory. If the plaintiff does not meet its burden, the court must grant the special motion to dismiss. § 59H.

Constitutional Law > Bill of Rights > Fundamental Freedoms > Freedom to Petition

Constitutional Law > ... > Fundamental Freedoms > Freedom of Speech > Strategic Lawsuits Against Public Participation

HN8 **Fundamental Freedoms, Freedom to Petition**

The mere fact that a statement concerns a topic that has attracted governmental attention, in itself, does not give that statement the petitioning character contemplated by the anti-SLAPP statute, Mass. Gen. Laws Ann. ch. 231, § 59H. Further, although a commercial motive may not preclude a finding that speech constitutes protected petitioning activity, it may provide evidence that particular statements do not constitute petitioning activity. For example, speech that is intended to achieve a purely commercial result, such as increasing demand for one's products or services, is not protected petitioning activity. The court considers statements in the context in which they were made in determining whether they are protected petitioning.

Constitutional Law > Bill of Rights > Fundamental Freedoms > Freedom to Petition

Constitutional Law > ... > Fundamental Freedoms > Freedom of Speech > Strategic Lawsuits Against Public Participation

HN9 **Fundamental Freedoms, Freedom to Petition**

Statements referenced in a complaint may constitute protected petitioning within the scope of the anti-SLAPP statute, Mass. Gen. Laws Ann. ch. 231, § 59H, where they were made in connection with an issue under consideration or review by a legislative, executive, or judicial body and/or to encourage consideration or review of an issue by a legislative executive, or judicial body or any other governmental proceeding. However, a defendant cannot obtain dismissal through an anti-SLAPP motion just because some of the allegations in the complaint are directed at conduct by the defendant that constitutes petitioning activity. Rather, the defendant must show that the complaint, fairly read, is based solely on petitioning, and to that end the allegations need to be carefully parsed even within a single count.

Constitutional Law > ... > Fundamental Freedoms > Freedom of Speech > Strategic Lawsuits Against Public Participation

HN10 **Freedom of Speech, Strategic Lawsuits Against Public Participation**

The anti-SLAPP inquiry under Mass. Gen. Laws Ann. ch. 231, § 59H, produces an all or nothing result as to each count of the complaint. Either a count survives the anti-SLAPP inquiry or it does not, and the statute does not create a process for parsing counts to segregate components that can proceed from those that cannot.

Judges: [*1] Karen F. Green, Associate Justice of the Superior Court.

Opinion by: Karen F. Green

Opinion

MEMORANDUM OF DECISION AND ORDER ON DEFENDANT'S SPECIAL MOTION TO DISMISS THE AMENDED COMPLAINT

The Commonwealth of Massachusetts, by its Attorney General ("Commonwealth"), sued Exxon Mobil Corporation ("Exxon") for alleged violations of *G.L.c. 93A*. The Commonwealth claims that Exxon has violated *c. 93A* by: (1) misrepresenting and failing to disclose material facts regarding systemic ***climate*** change risks to Massachusetts investors (Count I); (2) misrepresenting the purported environmental benefit of

using its Synergy™ and Mobil 1™ products and failing to disclose the risks of ***climate*** change caused by its fossil fuel products to Massachusetts consumers (Count II); and (3) promoting false and misleading "greenwashing" campaigns to Massachusetts consumers (Count III).

The matter is now before me on Exxon's Special Motion to Dismiss pursuant to the anti-SLAPP ("***Strategic Litigation*** against Public Participation") statute, G.L.c. 231, §59H. After a hearing and for the reasons that follow, Exxon's motion is *DENIED*.

DISCUSSION

HN1 The Massachusetts Legislature enacted the anti-SLAPP statute to counteract "SLAPP" suits, defined broadly as "lawsuits brought **[*2]** primarily to chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances." Duracraft Corp. v. Holmes Prods. Corp., 427 Mass. 156, 161, 691 N.E.2d 935 (1998) (objective of SLAPP suit is not to win, but to use litigation to intimidate opponents' exercise of rights of petitioning and speech). Generally, a SLAPP suit has no merit. See Cadle Co. v. Schlichtmann, 448 Mass. 242, 248, 859 N.E.2d 858 (2007).

HN2 The anti-SLAPP statute protects "a party's exercise of its right of petition." G.L.c. 231, §59H. In relevant part, it provides:

> In any case in which a party asserts that the civil claims, counterclaims, or cross claims against said party are based on said party's exercise of its right of petition under the constitution of the United States or of the commonwealth, said party may bring a special motion to dismiss.

That definition makes clear that "the statute is designed to protect overtures to the government by parties petitioning in their status as citizens . . . The right of petition contemplated by the Legislature is thus one in which a party seeks some redress from the government." Fustolo v. Hollander, 455 Mass. 861, 866, 920 N.E.2d 837 (2010), quoting Kobrin v. Gastfriend, 443 Mass. 327, 332-33, 821 N.E.2d 60 (2005). ***HN3*** The anti-SLAPP statute defines "a party's exercise of its right to petition" as:

[1] any written or oral statement made before or submitted to a legislative, executive, or judicial body, or any other governmental **[*3]** proceeding; [2] any written or oral statement made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other governmental proceeding; [3] any statement reasonably likely to encourage consideration or review of an issue by a legislative executive, or judicial body or any other governmental proceeding; [4] any statement reasonably likely to enlist public participation in an effort to effect such consideration; or [5] any other statement falling within constitutional protection of the right to petition government.

HN4 G.L.c. 231, §59H. For the purposes of §59H, "[p]etitioning includes all 'statements made to influence, inform, or at the very least, reach governmental bodies—either directly or indirectly.' " North American Expositions Co. Ltd. Partnership v. Corcoran, 452 Mass. 852, 862, 898 N.E.2d 831 (2009), quoting Global NAPS, Inc. v. Verizon New England, Inc., 63 Mass.App.Ct. 600, 605, 828 N.E.2d 529 (2005).

HN5 As the moving party, Exxon, which alleges it has been the target of a SLAPP suit, first must show, by a preponderance of the evidence, that each claim it challenges is "solely based on [Exxon's] own petitioning activities." Blanchard v. Steward Carney Hosp., Inc., 483 Mass. 200, 203, 130 N.E.3d 1242 (2019); Duracraft Corp., 427 Mass. at 167-68 (moving party must show that claims against it are based on its petitioning activities alone and have no substantial basis other than or in addition to petitioning activities); Blanchard v. Steward Carney Hosp., Inc., 477 Mass. 141, 148, 75 N.E.3d 21 (2017) (as part of threshold burden, moving **[*4]** party must show that conduct complained of constitutes exercise of its right to petition). If Exxon fails to show that the only conduct about which the Commonwealth complains is petitioning activity, the court must deny the special motion to dismiss. See Benoit v. Frederickson, 454 Mass. 148, 152, 908 N.E.2d 714 (2009).[1]

HN7 If Exxon satisfies its threshold burden, then the burden shifts to the Commonwealth to demonstrate that G.L.c. 231, §59H does not require dismissal of its claims. See 477 Harrison Ave., LLC v. JACE Boston, LLC, 483 Mass. 514, 516, 134 N.E.3d 91 (2019). The

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[1] Contrary to the Commonwealth's suggestion, see Commonwealth's Opposition at page 11, I may not "pass over" this threshold inquiry. ***HN6*** A court should apply the augmented *Duracraft* framework sequentially. 477 Harrison Ave., LLC v. JACE Boston, LLC, 483 Mass. 514, 515, 519, 134 N.E.3d 91 (2019).

Commonwealth can do so in one of two ways. First, it can establish, by a preponderance of the evidence, that "[Exxon's] exercise of its right to petition was devoid of any reasonable factual support or any arguable basis in law and . . . [its] acts caused actual injury to the [Commonwealth]." G.L.c. 231, §59H. Alternatively, it can establish, "such that the motion judge can conclude with fair assurance," that each of the Commonwealth's claims is not a "meritless" SLAPP suit, i.e., that it is both colorable and non-retaliatory. 477 Harrison Ave., LLC, 483 Mass. at 516, 518-19, citing Blanchard, 477 Mass. at 159-60. If the Commonwealth does not meet its burden, the court must grant the special motion to dismiss. G.L.c. 231, §59H.

In Count I, the conduct complained of is Exxon's alleged misrepresentation of and failure to disclose material facts regarding systemic ***climate*** change **[*5]** risks to Massachusetts investors. In Count II, it is Exxon's alleged misrepresentation of the purported environmental benefit of consumer use of its Synergy™ and Mobil 1™ products and failure to disclose the risks of ***climate*** change caused by its fossil fuel products to Massachusetts consumers. Count III complains of Exxon's promotion of allegedly false and misleading "greenwashing" campaigns designed to "convey a false impression that [it] is more environmentally responsible than it really is, and so to induce consumers to purchase its products." Amended Complaint, ¶540.

Exxon argues that its statements to investors constitute petitioning activity because they " 'were issued in a manner that was likely to influence or, at the very least, reach' regulators and 'members of the public wishing to weigh in' on ***climate*** policy." Motion, page 14, quoting Blanchard, 477 Mass. at 151. Exxon also contends that its public statements regarding its Synergy™ and Mobil 1™ products constitute petitioning activity because, "at a minimum, this speech was intended and reasonably likely to 'enlist the participation of the public' in the [***climate***] policy debate at the heart of the Attorney General's lawsuit." Motion, page 15. Finally, **[*6]** Exxon argues that the statements the Commonwealth labels as "greenwashing" are actually its "advocacy of ***climate*** policy choices under consideration by various government and regulating bodies." Motion, page 16.[2]

[2] Exxon does not specify in its papers which definition of §59H applies to qualify its statements as "exercise[s] of its right of petition." When asked to do so during the hearing, Exxon responded that it relies on all of them.

Exxon has failed to meet its threshold burden of showing that the Commonwealth's claims are based *solely* on Exxon's petitioning activities.[3] As an initial matter, Exxon has entirely failed to explain how any of the omissions alleged by the Commonwealth as violating c. 93A qualify as petitioning protected by §59H, which applies only to "statements."[4]

HN8 With respect to statements on which the Commonwealth relies, the mere fact "[t]hat a statement concerns a topic that has attracted governmental attention, in itself, does not give that statement the [petitioning] character contemplated by the statute." Global NAPs, Inc., 63 Mass.App.Ct. at 605. Further, although a commercial motive may not preclude a finding that speech constitutes protected petitioning activity, it "may provide evidence that particular statements do not constitute petitioning activity." Fustolo, 455 Mass. at 870 & n.11, citing North Am. Expositions Co. Ltd. Partnership, 452 Mass. at 863. For example, speech that is intended to achieve a purely commercial result, such as increasing demand for one's products or services, is not protected petitioning **[*7]** activity. See Cadle Co., 448 Mass. at 250-54 (defendant lawyer's publication of statements on website, allegedly to share with public information about company's allegedly unlawful business practices, which he previously provided to regulatory officials and courts, did not constitute petitioning activity where he "created the

[3] The parties disagree whether the anti-SLAPP statute applies to civil enforcement actions brought by the Attorney General on the Commonwealth's behalf. Because Exxon has not met its initial burden of showing that the Commonwealth's claims against it are based solely on its petitioning activities, I need not reach this issue.

[4] In its complaint, the Commonwealth alleges not only misrepresentations by Exxon, but also failures to disclose information that the Commonwealth contends would be relevant to Massachusetts investors and consumers. For example, ¶18 of the Amended Complaint states: "In its communications with investors, including [Exxon's] supposed disclosures about ***climate*** change, . . . ExxonMobil has failed to disclose the full extent of the risks of ***climate*** change to the world's people, the fossil fuel industry, and [Exxon]." Further, "[i]n its marketing and sales of ExxonMobil products to Massachusetts consumers, . . . ExxonMobil likewise has failed . . . to disclose in those advertisements and promotional materials that the development, refining, and normal consumer use of ExxonMobil fossil fuel products emit large volumes of greenhouse gases, which are causing global average temperatures to rise and destabilizing the global ***climate*** system." *Id.* at ¶33; see also ¶538.

Web site, at least in part, to generate more litigation to profit himself and his law firm"); *Ehrlich v. Stern, 74 Mass.App.Ct. 531, 540-42, 908 N.E.2d 797 (2009)*. The court considers statements in the context in which they were made in determining whether they are protected petitioning. See *Wynne v. Creigle, 63 Mass.App.Ct. 246, 253, 825 N.E.2d 559 (2005)*.

Climate change indisputably is a topic that has attracted governmental attention. And, indeed, ***HN9*** some Exxon statements referenced in the complaint constitute protected petitioning within the scope of *§59H* because they were made "in connection with an issue under consideration or review by a legislative, executive, or judicial body" and/or "to encourage consideration or review of an issue by a legislative executive, or judicial body or any other governmental proceeding." However, Exxon cannot "obtain dismissal through an anti-SLAPP motion just because *some* of the allegations in the complaint are directed at conduct by the defendants that constitutes petitioning activity." *Haverhill Stem LLC v. Jennings, 99 Mass.App.Ct. 626, 634, 172 N.E.3d 410 (2021)*. **[*8]** Rather, Exxon must show "that the complaint, fairly read, is based *solely* on petitioning, and to that end the allegations need to be carefully parsed even within a single count." *Id.* (emphasis in original). It is apparent from the context in which they were made that many Exxon statements referenced in the complaint are not protected. See *Cadle Co., 448 Mass. at 250* (attorney published statements "not as a member of the public who had been injured by . . . alleged practices, but as an attorney advertising his legal services").[5]

Review of a just a few of the Commonwealth's allegations suffices to demonstrate that each of its claims is not based *solely* on Exxon's petitioning activities. First, with respect to Count I, the Commonwealth alleges that Exxon has consistently represented *to investors* that it will "face virtually no meaningful transition risks from ***climate*** change because aggressive regulatory action is unlikely, renewable energy sources are uncompetitive, and fossil fuel demand and investment will continue to grow." Amended Complaint, ¶497. As an example, the Commonwealth alleges that, in its 2019 Energy and Carbon Summary issued *to investors*, Exxon modeled a scenario where global temperatures would **[*9]** increase by 2 degrees Celsius. Amended Complaint, ¶506. Exxon stated:

> [b]ased on currently anticipated production schedules, we estimate that by 2040 a substantial majority of our year-end 2017 proved reserves will have been produced. Since the 2°C scenarios average implies significant use of oil and natural gas through the middle of the century, we believe these reserves face little risk from declining demand.

Amended Complaint, ¶510. In the same document, Exxon claimed that its "actions to address the risks of ***climate*** change . . . position ExxonMobil to meet the demands of an evolving energy system." Amended Complaint, ¶606. One of those "actions" is "[p]roviding products to help [Exxon's] customers reduce their emissions," including its Synergy™ fuels, which "yield better gas mileage, reduce emissions and improve engine responsiveness." *Id.*

Second, as to Count II, the Commonwealth alleges that Exxon markets its Synergy™ brand fuels *to consumers*, on *its promotional website*, as being "engineered for [b]etter gas mileage" and "[l]ower emissions." *Id.* at ¶595. For example, Exxon promotes its "Synergy Diesel Efficient™" fuel *to consumers* as the "latest breakthrough technology," and the **[*10]** "first diesel fuel widely available in the US" that helps "increase fuel economy" and "[r]educe emissions and burn cleaner," and represents that it "was created to let you drive cleaner, smarter and longer." *Id.* at ¶593. Finally, in support of Count III, the Commonwealth alleges that Exxon's "Protect Tomorrow. Today," *marketing campaign* amounts to deceptive "greenwashing" because Exxon falsely states that "Protect Tomorrow. Today" "defines [its] approach to the environment." *Id.* at ¶¶633, 639, 643.

Exxon has not shown, by a preponderance of the evidence, that it made any of these statements solely, or even primarily, to influence, inform, or reach any governmental body, directly or indirectly. Instead, the statements appear to be directed at influencing investors to retain or purchase Exxon's securities or inducing consumers to purchase Exxon's products and thereby increase its profits. Compare *Cadle Co., 448 Mass. at 252* ("palpable commercial motivation behind"

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[5] As an example, Exxon's "lobbying efforts" are arguably protected petitioning activities. ***HN10*** But the anti-SLAPP inquiry produces an all or nothing result as to each count of the complaint. *Ehrlich, 74 Mass.App.Ct. at 536*. "Either [a] count survives the anti-SLAPP inquiry or it does not, and the statute does not create a process for parsing counts to segregate components that can proceed from those that cannot." *Id.* (citations omitted).

defendant's creation of website "so definitively undercuts" petitioning character of statements published on website) with *Cardno ChemRisk, LLC v. Foytlin, 476 Mass. 479, 485-86, 68 N.E.3d 1180 (2017)* (activists' blog highlighting deceptive practices of company that reported on oil spill was protected petitioning activity, "implicit[ly] **[*11]** call[ing] for its readers to take action" to influence government). Because neither such statements nor the omissions alleged by the Commonwealth are protected under *G.L.c. 59H*, Exxon's special motion to dismiss must be denied.

ORDER

For the reasons stated above, it is hereby ORDERED that Exxon's Special Motion to Dismiss the Amended Complaint pursuant to the anti-SLAPP statute, *G.L.c. 231, §59H*, is DENIED.

Karen F. Green

Associate Justice of the Superior Court

Dated: June 22, 2021

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